

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

ANDREW LENNING,

★ AUG 11 2011 ★

Index No.:

PLAINT BROOKLYN OFFICE

COMPLAINT AND
JURY DEMAND

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DOMINICK RASO AND "JOHN DOES 1-10"
FICTITIOUS NAMES INTENDED TO BE POLICE
OFFICERS, EMPLOYEES OF THE NEW YORK
CITY POLICE DEPARTMENT EACH
INDIVIDUALLY AND AS POLICE OFFICERS
OF THE NEW YORK CITY POLICE
DEPARTMENT,

CV 11 - 3873

WEINSTEIN, J.

Defendants.

POLLAK, M.J

Plaintiff, ANDREW LENNING by and through his attorney, ALEXANDER M.

DUDELSON, ESQ., states as follows:

INTRODUCTION

1. This is an action for the wrongful acts of defendants THE CITY OF NEW YORK, POLICE OFFICER DOMINICK RASO and "JOHN DOES 1-10" FICTITIOUS NAMES INTENDED TO BE POLICE OFFICERS, EMPLOYEES OF THE NEW YORK CITY POLICE DEPARTMENT EACH INDIVIDUALLY AND AS POLICE OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT, in violation of Plaintiff's rights secured by 42 U.S.C. Section 1983 and the Constitution and laws of the United States.

2. Plaintiff, ANDREW LENNING, alleges that beginning on or about February 6, 2011, defendants committed wrongful and illegal acts against plaintiff, including falsely arresting plaintiff, wrongfully imprisoning plaintiff, assaulting and battering plaintiff and/or negligently causing physical injury to plaintiff, using excessive force in effecting the arrest of

plaintiff, intentionally and/or negligently inflicting severe emotional distress and causing physical injury to plaintiff's left eye, head, buttocks and back, negligence in the hiring and retaining of incompetent and unfit Officers, Detectives and Employees, negligence in the training and instruction, and supervision of its Officers, and violating Plaintiff's Constitutional and civil rights.

JURISDICTION

3. This action is brought under 42 U.S.C Section 1983 in conjunction with the Fourth, Eighth and Fourteenth Amendments to the United States Constitution, and the Constitutional, statutory and common laws of New York State.

4. Jurisdiction is invoked herein pursuant to the aforementioned statutory and Constitutional provisions pursuant to 28 U.S.C Section 1331 and 1343, this being an action seeking to redress for the violation of the plaintiffs Constitutional and civil rights.

5. Venue is proper in the United States District Court for the Eastern District of New York under 28 U.S.C. Section 1391(b) in that the incident arose in the Eastern District of New York.

6. Plaintiff demands a trial by jury on each and every one of his claims as pled herein.

PARTIES

7. At all time relevant hereto, plaintiff ANDREW LENNING, was and is a citizen of the United States and resident of Richmond County, in the City and State of New York.

8. At all times relevant hereto, defendant THE CITY OF NEW YORK was and is a municipality of the State of New York and owns, operates, manages, directs and controls the New York City Police Department, which employs the other named defendants.

9. At all times relevant hereto, defendant POLICE OFFICER DOMINICK RASO was at all times relevant to this action, an officer employed by the New York City Police Department, and acting under the color of the law. Upon information and belief, Officer DOMINICK RASO was assigned to the 120th Precinct of the New York City Police Department, at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

10. At all times relevant hereto, "JOHN DOES 1-10", FICTITIOUS NAMES INTENDED TO BE POLICE OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT, were at all times relevant to this action, police officers employed by the new York City Police Department, and acting under the color of state law. Upon information and belief, "JOHN DOES 1-10", FICTITIOUS NAMES INTENDED TO BE POLICE OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT were assigned to the 120th Precinct of the New York City Police Department, at the time of the occurrences alleged in this complaint. They are being sued in both their individual and official capacities.

11. At all times relevant hereto and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the New York City Police Department, and New York City, pursuant to their authority as employees, servants and agents of the New York City Police Department, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

12. At all times relevant hereto, the CITY OF NEW YORK was responsible for the training of its police officers, and more particularly, Defendants POLICE OFFICER DOMINICK RASO and "JOHN DOES 1-10", FICTITIOUS NAMES INTENDED TO BE

POLICE OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT, the unknown police officers whose identity plaintiffs intend to discover.

13. At all times relevant hereto, the defendant CITY OF NEW YORK was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the New York City Police Department.

14. At all times mentioned herein, the Defendant CITY OF NEW YORK, knew of or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of civil rights, assault and battery and/or negligently causing physical injury, use of excessive force in effecting arrest, intimidation, false arrest, false imprisonment, intentional and/or negligent infliction of emotional distress of plaintiff ANDREW LENNING.

15. The conduct and injuries complained of herein ensued without any negligent or culpable conduct on the part of the plaintiff ANDREW LENNING.

CONDITIONS PRECEDENT

16. On or about February 25, 2011, Plaintiff ANDREW LENNING's Notice of Claim was duly filed with the Controller's Office of the City of New York; said Notice was filed within (90) days after the causes of the action accrued. More than (30) days have elapsed since the filing of said Notice and this matter has not been settled or otherwise disposed of.

17. The plaintiff ANDREW LENNING and/or his attorney were served with a Notice for a 50-H hearing on April 4, 2011.

18. On or about April 25, 2011, a 50-H hearing in the matter of the Claim of ANDREW LENNING against THE CITY OF NEW YORK AND THE NEW YORK POLICE

DEPARTMENT was held at the office of Jeffrey Samel & Partners, Esqs., 150 Broadway- 20th Floor, New York, New York., before Gloria Anselm, a Notary Public of the State of New York.

19. Plaintiff ANDREW LENNING has duly complied with all of the conditions precedent to the commencement of this cause of action under the circumstances as set forth above

FACTUAL BACKGROUND

20. At all times relevant to this action, plaintiff ANDREW LENNING resided at 14 Ramblewood Avenue, Staten Island, New York.

21. That at all times relevant to this action, plaintiff ANDREW LENNING was twenty seven years of age.

22. On or about February 5, 2011, at approximately 10:00 p.m., plaintiff ANDREW LENNING and his friend arrived at 1144 Forest Avenue, Staten Island, New York and entered into an establishment commonly known as "The Rocks."

23. That plaintiff ANDREW LENNING was transported to 1144 Forest Avenue, Staten Island, New York by an automobile that was owned and operated by his friend.

24. Upon information and belief, on February 6, 2011 at approximately 2:20 a.m., plaintiff ANDREW LENNING stepped outside of the "The Rocks" and contacted, via mobile telephone, a cab service for the purposes of returning to his home.

25. Immediately after calling the cab service, plaintiff ANDREW LENNING re-entered "The Rocks," and retrieved a car key from his friend so that he could removing his personal items from his friend's car.

26. That plaintiff ANDREW LENNING, after retrieving the keys and leaving the establishment, crossed the street for the purposes of obtaining his personal items from his friend's vehicle.

27. That plaintiff ANDREW LENNING walked halfway down the street to Della Field and heard persons running and yelling from behind him.

28. That plaintiff ANDREW LENNING turned around to inventory the commotion.

29. Thereafter, Defendant, Police Officers DOMINICK RASO and "JOHN DOES 1-10", tackled plaintiff ANDREW LENNING to the ground.

30. Upon being tackled, plaintiff ANDREW LENNING's face hit the concrete ground.

31. While on the ground, defendant's Police Officer DOMINICK RASO and "JOHN DOES 1-10" hit the plaintiff multiple times on his body.

32. That plaintiff ANDREW LENNING attempted to stand up.

33. That certain individual "JOHN DOES 1-10" held plaintiff ANDREW LENNING from behind and hit plaintiff's legs with an unidentified hard object.

34. At no time did Police Officer DOMINICK ROSSO and "JOHN DOES 1-10" identify themselves as Police Officers.

35. Upon discovering that the Defendants were Police Officers, Plaintiff ANDREW LENNING clearly and unequivocally stated that he was not resisting the arrest.

36. That certain individual "JOHN DOES 1-10" placed plaintiff ANDREW LENNING under arrest and zip tied the plaintiff's wrists behind his back.

37. Thereafter, certain individual "JOHN DOES 1-10" transported the plaintiff to the 120th Precinct to process the arrest.

38. That plaintiff was caused to be held in a jail cell within the 120th precinct.

39. Upon being processed, the defendants took custody of the plaintiff's mobile telephone.

40. Upon several requests by the plaintiff while being held in the 120th precinct, the plaintiff was brought to Richmond University Center to treat his injuries.

41. Upon in information and belief, defendants DOMINICK RASO and/or "JOHN DOES 1-10," without his the plaintiff's consent, utilized the plaintiff's mobile telephone and sent a text message reading "suck it!" to numbers that were stored in the plaintiff's telephone.

42. That plaintiff ANDREW LENNING was charged with Resisting Arrest in Violation of New York Penal Law §205.30 and Harassment in violation of New York Penal Law §240.30.

43. That the plaintiff ANDREW LENNING was arraigned by Judge Alan J. Meyer in the Criminal Court of the City of New York, Richmond Criminal Court on February 7, 2011.

44. On March 1, 2011 the criminal proceeding was adjourned in contemplation of dismissal.

45. As a direct and proximate result of the actions of the defendant's NEW YORK POLICE DEPARTMENT, Police Officers DOMINICK RASO and "JOHN DOES 1-10," plaintiff ANDREW LENNING was physically assaulted resulting in physical injury, including a laceration on plaintiff's left eyelid, a bloody nose, a split bottom lip, lacerations on his wrists, deep bruising on his buttocks and shoulder blades, as well as lacerations on his head, legs, middle of his thigh, and both shins.

46. As a direct and proximate result of the actions of the police officer defendants, plaintiff ANDREW LENNING was falsely arrested for the aforementioned charges, all charges that the plaintiff is wholly innocent of.

47. Defendant's Police Officer DOMINICK RASO, and Police Officers "JOHN DOES 1-10" acted with actual malice in arresting plaintiff ANDREW LENNING on false charges and causing plaintiff to be prosecuted on charges that defendants know are false.

48. Defendant's Police Officers DOMINICK RASO and "JOHN DOES 1-10" brought the charges against plaintiff ANDREW LENNING and purposely misused their police powers and the courts to arrest, harass, intimidate, assault and batter, imprison and prosecute plaintiff for criminal charges in an effort to immunize themselves for their unlawful and unconstitutional arrest of plaintiff and their use of excessive force and gratuitous act of violence against plaintiff.

49. To date, as a direct result and proximate result of all of the defendants actions, plaintiff ANDREW LENNING has suffered the loss of his liberty, physical assault and batter, and continues to suffer physical and emotional pain, permanent damage to his good name, shame, degradation, humiliation, indignity, stress, loss of personal security and liberty, serious mental anguish, psychological and emotional distress, and various other physical and psychological injuries.

50. As a direct and proximate result of defendant's actions, plaintiff ANDREW LENNING was arrested and detained for a time amounting to a period lasting over 24 hours pending an arraignment for criminal charges without just cause.

51. As a direct and proximate cause of defendant's actions, plaintiff ANDREW LENNING was deprived of his rights, privileges and immunities under the Fourth, Eighth and

Fourteenth Amendments to the United States Constitution and the laws of the State of New York.

52. Defendant CITY OF NEW YORK, as a matter of policy and practice, has with deliberate indifference failed to adequately discipline, train or otherwise direct police officers, including the defendant police officers, with regard to the rights of residents, citizens, and visitors to the United States of America, thereby causing the defendant officers in this case to engage in unlawful conduct described above.

53. Defendant CITY OF NEW YORK, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers, including the defendants in this case, for violations of the constitutional rights of the persons within its domain, thereby causing police, including defendants in this case, to engage in the unlawful conduct described above.

54. Defendant CITY OF NEW YORK, in its policies and practices, has with deliberate indifference, failed to follow procedures for supervising and removing, when appropriate, unstable, malicious, violent, abusive, dishonest and biased police officers from their duties.

55. Defendant CITY OF NEW YORK, and the New York City Police Department, knew or should have known that prior to February 6, 2011, the perpetration of unlawful arrests, the use of excessive force, the commission of perjury and other malicious, violent and inappropriate unlawful acts by defendant officers were occurring, in that it believed that there may have been complaints of such unlawful conduct by these particular officers, but defendant CITY OF NEW YORK failed to take appropriate steps to eliminate such unlawful acts.

**FIRST CLAIM: VIOLATION OF CONSTITUTIONAL RIGHTS:
THE EXCESSIVE USE OF FORCE**

(Defendant Police Officer DOMINICK RASO)

56. Plaintiff repeats and realleges the allegations contained in paragraphs 1-55 of this complaint, as though fully set forth therein.

57. On the February 6, 2011 at approximately 2:30 a.m., at or around 1144 Forest Avenue, Staten Island, New York, the defendant POLICE OFFICER DOMINICK RASO, without just cause or provocation and in violation of proper and appropriate police conduct, and with maliciousness and violence, used excessive force in affected the arrest of plaintiff ANDREW LENNING such that plaintiff ANDREW LENNING was injured.

58. That the defendants, their agents, servants and employees, acting as agents and on behalf of the CITY OF NEW YORK and within the scope of their employment, intentionally and maliciously used excessive force, beyond what any reasonable officer in the circumstances would have used, while effecting an arrest of plaintiff ANDREW LENNING, and that no supervisor or superior officer intervened to prevent the use of such excessive force.

59. By reason of the aforesaid, plaintiff ANDREW LENNING suffered great physical damage and pain, intimidation and fear, and conscious pain and suffering, and was otherwise damaged.

60. The acts and conduct of defendant POLICE OFFICER DOMINICK RASO, as alleged in the foregoing paragraphs constitute the excessive use of force in effecting an arrest in violation of the Eighth Amendment to the United States Constitution and 42 U.S.C. Section 1983.

SECOND CLAIM: VIOLATION OF CONSTITUTIONAL RIGHTS:
THE EXCESSIVE USE OF FORCE
(Defendant "JOHN DOES")

61. Plaintiff repeats and realleges the allegations contained in paragraphs 1-60 of this complaint, as though fully set forth herein.

62. On the February 6, 2011, at approximately 2:30 a.m., at or around 1144 Forest Avenue, Staten Island, New York, the defendants "JOHN DOES 1-10", without just cause or provocation and in violation of proper and appropriate police conduct, and with maliciousness and violence, used excessive force in affected the arrest of plaintiff ANDREW LENNING such that plaintiff ANDREW LENNING was injured.

63. That the defendants, their agents, servants and employees, acting as agents and on behalf of the CITY OF NEW YORK and within the scope of their employment, intentionally and maliciously used excessive force, beyond what any reasonable officer in the circumstances would have used, while effecting an arrest of plaintiff ANDREW LENNING, and that no supervisor or superior officer intervened to prevent the use of such excessive force.

64. By reason of the aforesaid, plaintiff ANDREW LENNING suffered great physical damage and pain, intimidation and fear, and conscious pain and suffering, and was otherwise damaged.

65. The acts and conduct of defendant "JOHN DOES 1-10", as alleged in the foregoing paragraphs constitute the excessive use of force in effecting an arrest in violation of the Eighth Amendment to the United States Constitution and 42 U.S.C. Section 1983.

**THIRD CLAIM: VIOLATION OF CONSTITUTIONAL RIGHTS: DEPRIVATION OF
LIBERTY BY FALSE ARREST, FALSE IMPRISONMENT
(Defendant Police officer DOMINICK RASO)**

66. Plaintiff repeats and realleges the allegations contained in paragraphs 1-65 of this complaint as though fully set forth therein.

67. The actions of defendant Police Officer DOMINICK RASO, a member of the New York City Police Department, and acting under the color of state law, deprived plaintiff ANDREW LENING of his rights, privileges and immunities under the laws of the Constitution of the United States of America, in particular, the rights to liberty, to be secure in his person and property, to due process under the law, and the concomitant rights to be free from false arrest, false imprisonment and the intentional and/or negligent infliction of emotional distress.

68. By these actions, the individual defendant has deprived plaintiff ANDREW LENNING of his rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. Section 1983, for which defendant is individually liable.

69. As a result of the foregoing, plaintiff ANDREW LENNING was deprived of liberty, sustained great emotional injuries, was subject to great humiliation, and was otherwise harmed, damaged and injured.

**FOURTH CLAIM: VIOLATION OF CONSTITUTIONAL RIGHTS: DEPRIVATION OF
LIBERTY BY FALSE ARREST, FALSE IMPRISONMENT
(Defendant "JOHN DOES 1-10")**

70. Plaintiff repeats and realleges the allegations contained in paragraphs 1-69 of this complaint as though fully set forth therein.

71. The actions of defendant "JOHN DOES", a member of the New York City Police Department, and under the color of state law, deprived plaintiff ANDREW LENING of his rights, privileges and immunities under the laws of the Constitution of the United States of America, in particular the rights to liberty, to be secure in her person and property, to due process under the law, and the concomitant rights to be free from false arrest, false imprisonment, and the intentional and/or negligent infliction of emotional distress.

72. By these actions, the individual defendant has deprived plaintiff ANDREW LENNING of his rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. Section 1983, for which defendant is individually liable.

73. As a result of the foregoing, plaintiff ANDREW LENNING was deprived of liberty, sustained great emotional injuries, was subject to great humiliation, and was otherwise harmed, damaged and injured.

FIFTH CLAIM: VIOLATION OF CONSTITUTIONAL RIGHTS
(Defendant CITY OF NEW YORK)

74. Plaintiff repeats and realleges the allegations contained in paragraphs 1-73 of this complaint and though fully set forth therein.

75. At all times material to this complaint, defendant CITY OF NEW YORK, acting through its police department, the New York City Police Department, has in effect de facto policies, practices, customs and usages that were a direct and proximate cause of the unconstitutional conduct of the defendant officers.

76. These policies, practices and customs include, inter alia, the use of excessive force in making arrests, charging the plaintiff with (2) Counts under the New York Penal Law when the police used excessive force in an attempt to cover up their wrongdoing.

77. Upon information and belief, defendant CITY OF NEW YORK, failed to effectively screen, hire, train, supervise and discipline its detectives, sergeants, officers and other employees, including the defendant detectives, sergeant and employees herein, with respect to their propensity to use their police power in an unduly aggressive and violent manner, and to have a propensity to use excessive force in executing their police duties, and for their failure to protect citizens from unconstitutional conduct of other detective, sergeants and employees, thereby permitting and allowing the defendant detectives, officers, sergeants and employees

herein to be in a position to maliciously assault and batter the plaintiff, without cause or justification, in a demonstration of the excessive force in effecting the arrest of plaintiff ANDREW LENNING, that was so clearly grossly disproportionate under the circumstances, that it amounted to an abuse of official power that shocks the conscience, and to otherwise cause them injury and violate their constitutional rights, and/ or permit these actions to take place with their knowledge and/or consent.

78. Upon information and belief, defendant CITY OF NEW YORK maintained an inadequate structure for risk containment and stress management relative to its detectives, sergeants, officers and employees, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient, at the time of selection of detective, sergeants, officers and employees and thereafter during their employment, in its ability to evaluate and exchange information within the command structure of the police department about the performance of individual detectives, sergeants, officers and employees; in its training of supervisory personnel to effectively and adequately evaluate performance of an officer or employee; and in its ability to otherwise put the command and/or staff structure on notice that an individual or individuals were at significant levels of risk to the public at large. The effect of this was to permit detectives, sergeants, officers and employees to function at levels of significant and substantial risk to the public in general.

79. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant CITY OF NEW YORK has permitted and allowed the employment and retention of individuals as detectives, sergeants, officers and employees whose individual circumstances place the public or segments thereof at substantial risk of being the victims of unlawful and/or unreasonable behavior. Such policies, practices, customs and/or usages are a direct and

proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to the plaintiff therein.

80. The acts of defendant CITY OF NEW YORK as set forth above in paragraphs 1-79 deprived plaintiff ANDREW LENNING of his rights, privileges and immunities under the laws and Constitution of the United States; in particular the rights to be secure in his person and property, to due process under the law, and the right to be free from unlawful seizure, false arrest and false imprisonment, and from assault and battery, the excessive use of physical force intended to cause physical injury, and the intentional and/or negligent infliction of emotional distress.

81. The acts and conduct of defendant CITY OF NEW YORK as set forth above in paragraphs 1-79 deprived plaintiff ANDREW LENNING of his rights, privileges and immunities under the laws and Constitution of the United States; in particular the right to be free from assault and battery, the excessive use of physical force intended to cause physical injury, and the intentional and/or negligent infliction of emotional distress.

82. By these actions, defendant CITY OF NEW YORK has deprived plaintiff ANDREW LENNING of rights secured by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. Section 1983.

83. As a result of the foregoing, plaintiff sustained physical injuries, great emotional injuries, was subjected to extreme humiliation, and were otherwise harmed, damaged and injured.

**SIXTH CLAIM: CONSPIRACY TO VIOLATE CIVIL RIGHTS
(All Defendants)**

84. Plaintiff repeats and realleges the allegations contained in paragraphs 1-83 of this complaint and though fully set forth therein.

85. Defendants CITY OF NEW YORK, DOMINICK RASO and "JOHN DOES 1-10", under the color of the law, conspired with each other to undertake a course of conduct to injure, oppress, threaten, harass and intimidate plaintiff ANDREW LENNING, denying him free exercise and enjoyment of the rights and privileges and equal protection of the law secured to him by the Constitution, including the rights to be free from excessive force.

86. The aforementioned defendants, under the color of the law, conspired with each other to undertake a course of conduct to bear false witness and/or to bear false testimony and/or to produce false evidence in an effort, in violation of plaintiff ANDREW LENNING's constitutional rights including the right to due process, to have plaintiff wrongfully prosecuted for a crime that he did not commit.

**SEVENTH CLAIM: NEGLIGENCE UNDER THE LAWS OF THE STATE OF NEW YORK
(All Defendants)**

87. Plaintiff repeats and realleges the allegations contained in paragraphs 1-86 of this complaint as through fully set forth herein.

88. The injuries incurred by plaintiff ANDREW LENNING were due to the negligence of the defendants DOMINICK RASO, "JOHN DOES 1-10" and the City of New York.

89. As a result of the foregoing, plaintiff sustained great physical injuries, great emotional injuries, were subjected to extreme humiliation, and were otherwise harmed, damaged and injured.

**EIGHTH CLAIM: ASSAULT UNDER THE LAWS OF THE STATE OF NEW YORK
(All Defendants)**

90. Plaintiff repeats and realleges the allegations contained in paragraphs 1-89 of this complaint as though fully set forth herein.

As a result of the foregoing conduct on the part of the Defendants DOMINICK RASO, "JOHN DOES 1-10" and the CITY OF NEW YORK, plaintiff was placed in apprehension of imminent harmful and offensive bodily contact.

91. As a result of the foregoing, plaintiff sustained great physical injuries, great emotional injuries, and was subjected to extreme humiliation, and were otherwise harmed, damaged and injured.

NINTH CLAIM: BATTERY UNDER THE LAWS OF THE STATE OF NEW YORK
(All Defendants)

92. Plaintiff repeats and realleges the allegations contained in paragraphs 1-91 of this complaint as though fully set forth herein.

93. Defendants DOMINICK RASO, "JOHN DOES 1-10" and the CITY OF NEW YORK made offensive contact with plaintiff without privilege or consent.

94. As a result of the foregoing, plaintiff sustained great physical injuries, great emotional injuries, was subjected to extreme humiliation, and was otherwise harmed, damaged and injured.

PRAYER FOR RELIEF

WHEREFORE, plaintiff ANDREW LENNING requests the following relief jointly and severally as against all of the Defendants:

1. Award compensatory damages in an amount to be determined at trial;
2. Award punitive damages in an amount to be determined at trial;
3. Disbursements, costs and attorney's fees; and
4. For such other further relief that this court may deem just and proper under the circumstances.

PLAINTIFF DEMANDS TRIAL BY JURY

Dated: Brooklyn, New York
August 10, 2011



ALEXANDER M. DUDELSON, ESQ. (AD4809)
Attorneys for Plaintiff
26 Court Street - Suite 2306
Brooklyn, New York 11242
(718) 855-5100

JS 44 (Rev. 12/07)

CIVIL COVER SHEET

0711

3873

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON THE REVERSE OF THE FORM.)

I. (a) PLAINTIFFS

Andrew Lenning

COURT D.N.Y.

AUG 11 2011

(b) County of Residence of Plaintiff Richmond
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorney's (Firm Name, Address, and Telephone Number)

Alexander M. Dudelson, Esq. 26 Court Street - Suite 2306,
Brooklyn, New York 11242 (718) 855-5100

DEFENDANTS

City of New York, Police Officer - Dominick Deaso
"John Does 1-10"

County of Residence of First Listed Defendant New York
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE
LAND IN QUESTION.

Attorneys (If Known)

Michael Cardozo, Esq., Corporation Counsel, 100 Church
Street, New York, NY 10007 (212) 788-6760

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
☐ 2 U.S. Government Defendant
☒ 3 Federal Question (U.S. Government Not a Party)
☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | | | | | |
|---|---------------------------------------|----------------------------|---|----------------------------|---------------------------------------|
| Citizen of This State | ☒ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☒ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury PERSONAL INJURY ☐ 362 Personal Injury - Med. Malpractice ☐ 365 Personal Injury - Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 610 Agriculture ☐ 620 Other Food & Drug ☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 630 Liquor Laws ☐ 640 R.R. & Truck ☐ 650 Airline Regs. ☐ 660 Occupational Safety/Health ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Mgmt. Relations ☐ 730 Labor/Mgmt. Reporting & Disclosure Act ☐ 740 Railway Labor Act ☐ 790 Other Labor Litigation ☐ 791 Empl. Ret. Inc. Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 463 Habeas Corpus - Alien Detainee ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 810 Selective Service ☐ 850 Securities/Commodities/Exchange ☐ 875 Customer Challenge 12 USC 3410 ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 892 Economic Stabilization Act ☐ 893 Environmental Matters ☐ 894 Energy Allocation Act ☐ 895 Freedom of Information Act ☐ 900 Appeal of Fee Determination Under Equal Access to Justice ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 444 Welfare ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☒ 440 Other Civil Rights	PRISONER PETITIONS ☐ 510 Motions to Vacate Sentence Habeas Corpus: ☐ 530 General ☐ 535 Death Penalty ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition		

V. ORIGIN

(Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
☐ 2 Removed from State Court
☐ 3 Remanded from Appellate Court
☐ 4 Reinstated or Reopened
☐ 5 Transferred from another district (specify)
☐ 6 Multidistrict Litigation
☐ 7 Appeal to District Judge from Magistrate Judgment

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
42 U.S.C. section 1983

Brief description of cause:

False Imprisonment, Wrongful Arrest, Assault, Battery

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE

08/10/2011

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

JBW

MAG. JUDGE

OLD

11CV3873

ARBITRATION CERTIFICATION

I, Alexander M. Dudelson, counsel for Plaintiff do hereby certify pursuant to the Local Arbitration Rule 83.10 that to the best of my knowledge and belief the damages recoverable in the above captioned civil action exceed the sum of \$150,000 exclusive of interest and costs. Relief other than monetary damages is sought.

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:
Not Applicable

RELATED CASE STATEMENT (SECTION VIII)

All cases that are arguably related pursuant to Division of Business Rule 50.3.1 should be listed in Section VIII on the front of this form. Rule 50.3.1 (a) provides that "A civil case is "related" to another civil case for purposes of this guideline when, because of the similarity of facts and legal issues or because the cases arise from the same transactions or events, a substantial saving of judicial resources is likely to result from assigning both cases to the same judge and magistrate judge."

NY-E DIVISION OF BUSINESS RULE 50.1(d)(2)

1.) Is the civil action being filed in the Eastern District removed from a New York State Court located in Nassau or Suffolk County? No

2.) If you answered "no" above:

a) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? No

b) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? Yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County? No

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

BAR ADMISSION

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.

Yes ☒ No ☐

Are you currently the subject of any disciplinary action (s) in this or any other state or federal court?

Yes ☐ (If yes, please explain) No ☒

Please provide your E-MAIL address and bar code below. Your bar code consists of the initials of your first and last name and the last four digits of your social security number or any other four digit number registered by the attorney with the Clerk of Court. (This information must be provided pursuant to local rule 11.1(b) of the civil rules).

Attorney Bar Code: AD4809

E-MAIL Address: ADESQ@AOL.COM

Electronic filing procedures were adopted by the Court in Administrative Order No. 97-12, "In re: Electronic Filing Procedures (ECF)." Electronic filing became mandatory in Administrative Order 2004-08, "In re: Electronic Case Filing." Electronic service of all papers is now routine.

I certify the accuracy of all information provided above.

Signature: 